

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Patrick Browne	Team: Squad #5	CCRB Case #: 201502018	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 03/12/2015 12:30 PM	Location of Incident: Inside the 94th precinct stationhouse; Corner of Nassau Street and Lorimer Street	Precinct: 94	18 Mo. SOL 9/12/2016	EO SOL 9/12/2016	
Date/Time CV Reported Thu, 03/19/2015 3:05 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 03/19/2015 3:05 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Vladimir Radionov	16072	939265	094 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Kieron Lessey	25813	938850	094 PCT
2. POF Sandy Torres	14009	932160	094 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Vladimir Radionov	Discourtesy: PO Vladimir Radionov spoke discourteously to § 87(2)(b) at the 94th Precinct stationhouse on March 12, 2015, and at Nassau Street and Lorimer Street in Brooklyn on March 19, 2015.	
B.POM Vladimir Radionov	Abuse: PO Vladimir Radionov threatened to arrest § 87(2)(b) at the 94th Precinct stationhouse on March 12, 2015, and at Nassau Street and Lorimer Street in Brooklyn on March 19, 2015.	
§ 87(4-b) § 87(2)(g)		

Case Summary

At about 12:30 p.m. on March 12, 2015, § 87(2)(b) and § 87(2)(b) both § 87(2)(b) years old at the time, were arrested for § 87(2)(b) and taken to the 94th Precinct stationhouse. While they were being held in a detention room by their arresting officers—identified through investigation as PO Sandy Torres and PO Kieron Lessey of the 94th Precinct—another officer from the same command, PO Vladimir Radionov, allegedly entered the room and without provocation, called § 87(2)(b) a “fucking piece of shit” two to three times (**Allegation A**) and told him, “I can’t wait until you turn sixteen, you’ll be in Central Booking every day” (**Allegation B**).

Separately, at approximately 10:00 a.m. on March 19, 2015, § 87(2)(b) and his younger brother, § 87(2)(b) were on their way to school when they stopped into a convenience store on the corner of Manhattan Avenue and Nassau Street in Brooklyn. As they exited, PO Radionov approached and grabbed § 87(2)(b) placing him in a nearby van occupied by PO Torres and PO Lessey. In order to escape, § 87(2)(b) ran down the street, but was pursued by the officers and apprehended about one block away. As PO Radionov grabbed him, he allegedly called § 87(2)(b) a “fucking piece of shit” (**subsumed within Allegation A**). After he placed him in PO Torres and PO Lessey’s van, PO Radionov allegedly asked § 87(2)(b) when he turned sixteen. When § 87(2)(b) told him, PO Radionov allegedly replied, “I’m gonna fucking pick you up every day for anything,” and “You fucking piece of shit, you’re gonna be in Booking every day, just watch” (**subsumed within Allegations A and B**).

§ 87(2)(b), § 87(2)(g)

Mediation, Civil and Criminal Histories

Although mediation was presented to both § 87(2)(b) and his mother, § 87(2)(b) they chose for the case to be investigated. § 87(2)(b)

A notice of claim request submitted on April 24, 2015 is outstanding.

Civilian and Officer CCRB Histories

- PO Vladimir Radionov has been a member of the NYPD for nine years and has been a subject in eight prior cases involving twelve allegations (see Board Review #1). Four of these were discourtesy allegations, one of which was withdrawn, one unsubstantiated, one closed as complainant uncooperative, § 87(2)(b). The remaining allegations include five uses of force, one stop, and one threat of force.
- This is the first CCRB complaint filed by either § 87(2)(b) or § 87(2)(b) (see Board Review #2).

Findings and Recommendations

Allegations Not Pleaded

- Stops:** On March 19, 2015, § 87(2)(b) and § 87(2)(b) acknowledged that they were late to school when the officers stopped them for truancy.

Investigative Findings and Recommendations

Allegation A—Discourtesy: PO Vladimir Radionov spoke discourteously to § 87(2)(b) at the 94th Precinct stationhouse on March 12, 2015, and at Nassau Street and Lorimer Street in Brooklyn on March 19, 2015.

Allegation B—Abuse of Authority: PO Vladimir Radionov threatened to arrest § 87(2)(b) at the 94th Precinct stationhouse on March 12, 2015, and at Nassau Street and Lorimer Street in Brooklyn on March 19, 2015.

§ 87(2)(b) alleged that while he was being detained in a room at the 94th Precinct stationhouse by PO Lessey and PO Torres on March 12, 2015, PO Radionov entered the room and, without § 87(2)(b) saying anything, called him a “fucking piece of shit” multiple times as well as stated, “I can’t wait until you turn sixteen, you’ll be in Central Booking every day.” It was further alleged that on March 19, 2015, when being stopped for truancy, PO Radionov again called § 87(2)(b) a “fucking piece of shit” and after placing him in a van and asking when he turned sixteen stated, “I’m gonna fucking pick you up every day for anything” and “You’re gonna be in Booking every day, just watch.” Although § 87(2)(b) did not hear any of the conversation between PO Radionov and § 87(2)(b) on March 12, 2015 because he was reportedly sitting outside the room, he confirmed that PO Radionov did enter at one point. § 87(2)(b) (see Board Review #3), who was also in the room, corroborated that PO Radionov called § 87(2)(b) a “fucking piece of shit” and made some reference to his possible or future arrest, though he did not recall the exact wording. Meanwhile, § 87(2)(b) corroborated the general sequence of events on March 19, 2015, but alleged that as he stopped § 87(2)(b) he asked, “Why the fuck were you running?” and after placing him in the van, stated, “I can’t wait until you turn sixteen, I’m gonna catch you for every little thing every day.” Only after being specifically asked if PO Radionov called § 87(2)(b) a “fucking piece of shit” did he claim that PO Radionov did make that statement and that it was said after § 87(2)(b) was in the van.

PO Radionov repeatedly emphasized during his interview that he could not be sure to which incidents this case referred, as he interacts with § 87(2)(b) frequently. Due to the absence of any related memo book entries, PO Radionov ultimately denied interacting with § 87(2)(b) on either March 12, 2015 or March 19, 2015. However, when asked generally about the allegations, PO Radionov denied ever calling § 87(2)(b) a “fucking piece of shit” on any occasion or ever making any references to him being arrested in the future. Neither PO Torres nor PO Lessey recalled PO Radionov being present for the incident on March 12, 2015 at the stationhouse, though both officers confirmed that he was present for the stop on March 19, 2015. Although PO Lessey denied ever hearing PO Radionov make the alleged statements or profanity, PO Torres stated that she did not recall hearing such.

Officers are required to speak courteously and respectfully to civilians, though discourteous language does not constitute misconduct when it is used to ensure a civilian’s cooperation in enforcing the law. Patrol Guide Procedure 203-09 (see Board Review #4); *Police Department v. Dukes* (Apr. 26, 2000) (see Board Review #5). If an individual has not committed any offense for which he can be arrested, an officer’s threat to arrest that individual is fundamentally unjustified.

§ 87(2)(g)

§ 87(2)(g) [Redacted text block]

§ 87(2)(g) [Redacted text block]

§ 87(2)(g) [Redacted text block]

§ 87(2)(g) [Redacted text block]

§ 87(4-b), § 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

POD: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date